

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on July 11, 2022. The complaint is directed against the CITY COUNCIL OF VALENCIA with NIF P4625200C (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

On July 10, 2022, a Local Police officer of the City Council of Valencia photographed both sides of the complainant's ID card with his personal mobile phone, after his partner had already identified him and noted his details in a notebook.

SECOND: In accordance with the then applicable article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on July 14, 2022, as evidenced by the acknowledgment of receipt in the file.

THIRD: On July 29, 2022, the respondent responded to the transfer of the complaint, stating:

- The action of the police officer who took the photograph of the complainant's ID was motivated by the dynamics of the intervention, in which, while performing her duties of reporting improperly parked vehicles, the complainant refused to identify himself; therefore, when he finally agreed to show his ID, in order to expedite the action and avoid a more conflictive situation, fearing that he might change his mind and withdraw the identification document, the officer took a photograph of the ID with her personal phone, photographs that, once the other officer collected the personal data in the report forms, were immediately deleted from the device, without any use being made of them.

- Regarding the measures adopted by the Local Police of Valencia concerning the collection of personal data by agents of this Body, through photographs in

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specific devices, it is reported that "from the Headquarters, instructions have been repeatedly issued regarding the prohibition of taking or receiving personal data through photographs or images using personal devices. However, in light of what has occurred, an Instruction from the Body is being prepared with precise guidelines on this matter and a prohibition for the members of the Body to take images that may contain personal data on personal devices; this Instruction from the Body, once published, will be mandatory under penalty of incurring disciplinary responsibility."

FOURTH: On August 8, 2022, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to the inadmissibility of the claim. The resolution was notified to the claimant on the same day, as evidenced in the file.

FIFTH: On August 8, 2022, the claimant filed a voluntary appeal for reconsideration through the Electronic Registry of the AEPD, against the resolution issued in file EXP202207781, in which they expressed their disagreement with the contested resolution, arguing that the respondent party has acknowledged the facts.

SIXTH: On September 2, 2022, the appeal filed was sent to the respondent party in accordance with the provisions of Article 118.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) for the purpose of allowing them to formulate allegations and present the documents and evidence they deemed appropriate, which was verified by a response letter dated September 16, 2022, in which they reiterated what was stated in their response to the transfer of the claim.

SEVENTH: On October 17, 2022, the Director of the Spanish Agency for Data Protection issued a resolution accepting the voluntary appeal for reconsideration filed by the claimant, which was notified

to them on the same day, as evidenced in the file.

EIGHTH: On July 13, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR and for the alleged infringement of Article 32 of the GDPR, classified under Article 83.5 of the GDPR and Article 83.4 of the GDPR, respectively.

This initiation agreement, which was notified to the respondent party in accordance with the rules established in the LPACAP, was received on July 14, 2023, as evidenced by the acknowledgment of receipt in the file.

NINTH: On July 24, 2023, a written submission was received at this Agency, in due time and form, from the respondent party in which they presented allegations against the initiation agreement, in which, in summary, they stated that: there was a contradiction in what was alleged by the claimant regarding the fact that the other agent had taken their data before...

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to take the photograph in question; that there was proportionality in the actions of the agent when taking that photograph; and that the respondent had adequate security measures at the time the events occurred.

TENTH: On January 12, 2024, the instructing body of the procedure issued a proposal for resolution in which it proposed that it be declared that the respondent had infringed the provisions of Article 5.1.c) of the GDPR and the provisions of Article 32 of the GDPR. It was also proposed that the respondent be ordered to demonstrate to this Agency within TWO MONTHS the adoption of appropriate measures to prevent the Local Police agents of the Valencia City Council from capturing images of individuals' ID cards when such capture constituted excessive processing of personal data.

In this proposal for resolution, the respondent was informed that they had a period of ten days to submit allegations.

This proposal for resolution, which was notified to the respondent in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was received on January 15, 2024, as evidenced by the acknowledgment of receipt in the file.

ELEVENTH: Once the aforementioned proposal for resolution was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations were received from the respondent.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: On July 10, 2022, an agent of the Local Police of the Valencia City Council photographed both sides of the claimant's ID card with their personal mobile phone.

SECOND: On July 29, 2022, the Local Police of the Valencia City Council adopted instruction I092022 "Use of personal devices for capturing images and audio by PLV officials," which included, among other content, the following: "(...) the prohibition is established to obtain personal data of natural or legal persons by personal recording devices that are not expressly authorized by the Chief of the Local Police of Valencia.

Failure to comply with this instruction could determine, where appropriate, disciplinary responsibility; without prejudice to any administrative, civil, or criminal liability that may be required. (...)"

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LEGAL GROUNDS

I

Competence and procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

In this case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is established that there was a processing of personal data, since the respondent collected, among others, the following personal data of individuals: name and surname and ID number, among other processing operations.

The respondent carried out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

For its part, Article 5 of the GDPR establishes the principles of processing, and Article 32 of the GDPR regulates the appropriate technical and organizational measures to ensure an adequate level of security.

III

Allegations made

In relation to the allegations made regarding the initiation agreement of this sanctioning procedure, a response is provided according to the order presented by the respondent:

The respondent indicates that the facts narrated in the report of the acting agent on July 28, 2022 contradict those declared by the claimant in that the other acting agent had taken the ID data in the report before the photographs in question were taken, since, according to the police report, these photos would have been taken prior to the data collection.

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The responding party argues that it makes no sense to take the data from the ID card and then take photographs of it, as that information would already be available. Therefore, logically, the temporal sequence should have been as indicated by the police officer, that is, taking the photograph, transferring the information contained in it to the complaint report, and deleting the photograph.

In this regard, this Agency wishes to point out that, for the purposes of this sanctioning procedure, it is irrelevant whether the photographs of the ID card were taken before or after the other officer noted the data contained therein, and thus this allegation is dismissed.

The responding party continues by analyzing the proportionality of the means used to collect the data from the complainant, namely, taking photographs with the acting officer's personal device.

It points out that Organic Law 4/2015, of March 30, on the protection of citizen security, provides in its article 9.2 that "All persons required to obtain the National Identity Document are also required to display it and allow the verification of the security measures referred to in paragraph 2 of article 8 when requested to do so by the authority or its agents, for the fulfillment of the purposes provided for in paragraph 1 of article 16," while the latter article establishes that identification shall respect, among other principles, the principle of proportionality and comply with data protection regulations.

The responding party acknowledges that taking the photograph through the acting officer's personal device constitutes a dysfunction and has been noted on numerous occasions by the Local Police Headquarters, both before and after the events occurred. However, it argues that such dysfunction was likely generated as a consequence of the concurrent circumstances (a tense situation with the citizen and refusal to identify themselves), which may have led the officer to use some means to prevent the situation from prolonging and evolving in such a way that more coercive measures would need to be adopted. Therefore, even acknowledging that the means used was not appropriate, it is considered that there may have been some proportionality in light of those circumstances, which could be taken into account by the AEPD when analyzing the facts and weighing their compliance with the principle of data minimization and the corresponding absence of infringement of article 5.1, c of the GDPR.

In this regard, this Agency wishes to point out that the responding party itself acknowledges that using a personal phone to capture the image of the complainant's ID card was not appropriate. The fact that a tense situation occurred with an individual does not authorize the agents of the Local Police of Valencia to use such devices. In fact, Organic Law 4/2014 only obliges individuals to display the ID card and allow its verification when requested to do so by the authority or its agents; it does not authorize these agents to capture images with their personal devices.

Therefore, this allegation is dismissed.

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Regarding the classification of the infringement of Article 32 of the GDPR, it is reiterated that the responding party did adopt security measures to prevent the use of personal devices by members of the local police, as evidenced in the report from the Local Police Headquarters dated July 28, 2022, which is part of the file. It states that "In relation to the measures adopted by this Local Police regarding the collection of personal data by agents of this Body, through photographs on personal devices, it must be reported that from the Headquarters, instructions have been repeatedly issued in this regard, indicating not to take or receive personal data through photographs or images on personal devices. Nevertheless, in light of what has occurred, an Instruction of the Body is being drafted with the precise indications regarding this matter and a prohibition for the members of the Body to take images that may contain personal data on personal devices; this Instruction of the Body, once published, will be mandatory under penalty of incurring disciplinary responsibility."

Therefore, it is considered that the responding party had indeed adopted such measures prior to the events; however, following the incident, the Instruction from the Local Police Headquarters of Valencia 092022, dated July 29, 2022, regarding the use of personal devices for capturing images and audio by officials of the Local Police of Valencia was published, with a warning of the adoption of disciplinary measures in case of non-compliance, which is attached to these allegations.

In this regard, this Agency wishes to point out that there is no evidence in the present procedure of such instructions being given to the agents prior to the occurrence of the events, although the Instruction dated July 29, 2022, has been incorporated into the established facts of this resolution. In any case, this Agency reiterates that at the time the claimed events occurred, the responding party did not have appropriate measures in place to prevent an incident like the one that occurred in this case. Therefore, this allegation is dismissed.

IV

Data Minimization

Article 5 "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization'); (...)"

In the present case, it is noted that an agent of the Local Police of the City Council of Valencia took a

photograph of the front and back of the claimant's ID card with his personal mobile phone.

As established in section III of the "Preamble" of Organic Law 4/2015, of March 30, on the protection of citizen security (LOPSC), "(...) the competent authorities are empowered to agree on various actions aimed at maintaining and, where appropriate, restoring public tranquility in C/ Jorge Juan, 6

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assumptions of public insecurity, precisely regulating the budgets, purposes, and requirements for carrying out these procedures, in accordance with the principles, among others, of proportionality, minimal interference, and non-discrimination (...).

And thus it is established in Articles 9.2 and 16.1 of the LOPSC, regarding the obligation to display and allow verification of the National Identity Document (DNI) by agents of the State Security Forces and Corps.

In Article 9, concerning the obligations and rights of the holder of the National Identity Document, it states that:

"2. All persons required to obtain the National Identity Document are also required to display it and allow verification of the security measures referred to in paragraph 2 of Article 8 when requested to do so by the authority or its agents, for the fulfillment of the purposes provided for in paragraph 1 of Article 16. Any theft or loss must be reported as soon as possible to the nearest police station or post of the State Security Forces and Corps."

In its Article 16, regarding the Identification of persons, it is established that:

"1. In the performance of their functions of investigation and crime prevention, as well as for the sanctioning of criminal and administrative offenses, agents of the State Security Forces and Corps may require the identification of persons in the following cases:

- a) When there are indications that they may have participated in the commission of an offense.
- b) When, considering the circumstances at hand, it is reasonably deemed necessary for them to prove their identity to prevent the commission of a crime. In these cases, agents may carry out the necessary verifications in public spaces or at the location where the request was made, including the identification of persons whose faces are not fully or partially visible due to the use of any type of garment or object that covers them, hindering or making identification difficult, when necessary for the indicated purposes.

In the practice of identification, the principles of proportionality, equal treatment, and non-discrimination based on birth, nationality, racial or ethnic origin, sex, religion or beliefs, age, disability, sexual orientation or identity, opinion, or any other personal or social condition or circumstance shall be strictly respected."

Therefore, the State Security Forces and Corps may process the personal data of citizens for the prevention, investigation, detection, or prosecution of criminal offenses and for the performance of their public interest functions. However, these processes must be carried out while fully respecting the provisions established in the current regulations on the protection of personal data, the GDPR, and the LOPDGDD, respectively.

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The use of a personal mobile phone to capture the image of a citizen's ID card is not covered by either the specific regulations applicable to the State Security Forces and Corps or by the regulations on personal data protection.

Article 5 of the GDPR establishes the principles related to the processing of personal data by the controller and/or processor, and in its section 1.c) it specifies that "the processing of personal data must be adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed," known as the principle of "data minimization."

It should be clarified that this article does not limit the use of a large number of data, but rather the necessity of such data in relation to the purpose of the processing. That is, personal data will be “adequate, relevant and limited to what is necessary” for the purpose for which they were collected, so that if the intended objective could have been achieved by other means, without excessive data processing, as in the present case of taking a photograph of the ID card, the latter should have been used in any case. This is also indicated in Recital 39 of the GDPR, which states: “Personal data should only be processed if the purpose of the processing could not reasonably be fulfilled by other means.” Therefore, only data that is “adequate, relevant and not excessive in relation to the purpose for which it is obtained or processed” will be processed. The categories of data selected for processing must be strictly necessary to achieve the stated objective, and the data controller must strictly limit the collection of data to that information which is directly related to the specific purpose being pursued. The fact that a police officer took a photograph of the ID card of the complaining party constitutes an excessive processing of personal data, contrary to the principle of “data minimization” (Art. 5.1.c) GDPR), considering that the existing situation at that moment allowed for a less invasive data collection. While security forces need to identify citizens in the exercise of their functions, it is not necessary to capture the image of their ID card; mere exhibition and, if necessary, notation is sufficient.

Therefore, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to the party being claimed, for violation of Article 5.1.c) of the GDPR.

V

Classification and qualification of the infringement of Article 5.1.c) of the GDPR

The aforementioned infringement of Article 5.1.c) of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

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“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

For the purposes of the limitation period, Article 72 “Very serious infringements” of the LOPDGDD indicates:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)

VI

Security of processing

Article 32 “Security of processing” of the GDPR establishes:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing

systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. When assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.

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4. The data controller and the data processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data in accordance with the instructions of the controller, unless required to do so by Union or Member State law.

The GDPR, in its Article 32, requires data controllers to adopt the necessary technical and organizational security measures to ensure that processing is in compliance with current regulations, as well as to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data in accordance with the instructions of the controller.

Furthermore, Recital (74) of the GDPR states: “The responsibility of the data controller for any processing of personal data carried out by him or on his behalf must be established. In particular, the controller must be obliged to implement appropriate and effective measures and must be able to demonstrate compliance of processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing, as well as the risk to the rights and freedoms of natural persons.”

Therefore, the collection of data from a citizen by agents of the State Security Forces and Corps must be carried out using technical and organizational methods that guarantee the security and confidentiality of personal data, following the precise instructions of the data controller.

According to the file, one of the agents of the Local Police of the accused party took a photograph of the ID card of the claimant with his personal mobile phone. The accused party stated that the official took only one image of the ID and that the image of the document was deleted once the purpose for which it was taken was fulfilled and that “from the Headquarters, instructions have been repeatedly issued regarding not taking or receiving personal data through photographs or images by personal devices.” It was also stated that a subsequent Instruction from the Corps was adopted with precise indications regarding this matter and a prohibition for the members of the Corps to take images that may contain personal data on personal devices; which is mandatory compliance under penalty of incurring disciplinary responsibility.

In the present case, at the time the events subject to this complaint occurred, the security measures adopted were neither sufficient nor appropriate to prevent the agents of the Local Police of the accused party from taking photographs of citizens' ID cards with their personal mobile phones.

Therefore, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to the accused party, for violation of Article 32 of the GDPR.

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VII

Qualification of the infringement of Article 32 of the GDPR

If confirmed, the aforementioned infringement of Article 32 of the GDPR could constitute the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)”

For the purposes of the statute of limitations, Article 73 “Serious infringements” of the LOPDGDD indicates:

“Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and shall be subject to a two-year statute of limitations for substantial violations of the articles mentioned therein, particularly the following:

(...)

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679. (...)”

VIII

Declaration of infringement

Article 83 “General conditions for the imposition of administrative fines” of the GDPR in its paragraph 7 establishes:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 “Regime applicable to certain categories of controllers or processors” of the LOPDGDD provides the following:

“1. The regime established in this article shall apply to the processing for which they are responsible or for which they are processors:

(...)

c) The General Administration of the State, the administrations of the autonomous communities, and the entities that make up the Local Administration.

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2. When the responsible parties or data processors listed in section 1 commit any of the violations referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed, with the exception of that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the data controller or processor, to the body to which they hierarchically depend, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to the provisions of the previous section, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on

disciplinary or sanctioning regimes that are applicable.

Furthermore, when the violations are attributable to authorities and executives, and it is evidenced that there are technical reports or recommendations for processing that have not been duly addressed, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order publication in the Official State Gazette or the corresponding regional gazette.

4. The resolutions relating to the measures and actions referred to in the previous sections shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities. Therefore, upon confirming the violations, it is appropriate to issue a resolution declaring such violations.

IX

Adoption of Measures

In accordance with the provisions of Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...", the requested party is required to demonstrate within TWO MONTHS to this Agency the adoption of appropriate measures to prevent the Local Police officers of the Valencia City Council from capturing the image of the ID card of individuals when such capture constitutes excessive processing of personal data.

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It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the VALENCIA CITY COUNCIL, with NIF P4625200C, has infringed the provisions of Article 5.1.c) and Article 32 of the GDPR, violations classified in Article 83.5 of the GDPR and Article 83.4 of the GDPR, respectively.

SECOND: TO ORDER the VALENCIA CITY COUNCIL, with NIF P4625200C, that pursuant to Article 58.2.d) of the GDPR, within TWO MONTHS from the date this resolution becomes final and enforceable, to demonstrate to this Agency the adoption of appropriate measures to prevent the Local Police officers of the Valencia City Council from capturing the image of the ID card of individuals when such capture constitutes excessive processing of personal data.

THIRD: TO NOTIFY this resolution to the VALENCIA CITY COUNCIL.

FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution shall be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months

from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written notice addressed to the Spanish Agency for Data Protection, submitting it through

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of the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. The documentation that certifies the effective filing of the contentious-administrative appeal must also be submitted to the Agency. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

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